

24TRCP00238 24TRCP00238

County: los-angeles

Division: Civil Law and Motion

Department: 5

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Case Number: 24TRCP00238 Hearing Date: July 16, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

RADIANCE CAPITAL RECEIVABLES

EIGHTEEN, LLC

;

Plaintiff,

vs.

JACKSON CHRIS M.

;

Defendant.

Case

No.:

24TRCP00238

Hearing

Date:

July
16, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

JUDGMENT

CREDITOR AND PLAINTIFF RADIANCE CAPITAL RECEIVABLES EIGHTEEN, LLC'S MOTION
FOR ORDER ALLOWING THE GARNISHMENT OF WAGES OF JUDGMENT DEBTOR'S SPOUSE [CCP
§ 706.109]

MOVING PARTY: Judgment Creditor and Plaintiff,
Radiance Capital Receivables Eighteen, LLC

RESPONDING PARTY: No opposition.

(1)

Judgment

Creditor and Plaintiff Radiance Capital Receivables Eighteen, LLC's Motion for
Order Allowing the Garnishment of Wages of Judgment Debtor's Spouse [CCP §
706.109] is DENIED pursuant to Code of Civil Procedure section 706.109 and
Family Code section 910.

The Court considers the moving
papers filed on April 13, 2026. To date,
no opposition brief has been filed.

BACKGROUND

Factual Background

On June 10, 2024, Radiance
Capital Receivables Eighteen, LLC ("Judgment Creditor" or "Plaintiff") filed an

Application for Entry of Judgment on Sister-State Judgment and Issuance of Writ of Execution or Other Enforcement. This application asserted that Jackson Chris M. ("Judgment Debtor" or "Defendant") owed \$760,039.49, along with interest.

Subsequently, on July 29, 2024, Judgment Creditor filed an Amended Application for Entry of Judgment on Sister-State Judgment and Issuance of Writ of Execution or Other Enforcement against Judgment Debtor.

On August 15, 2024, Judgment Creditor filed an Amended Judgment Based on Sister-State Judgment, which the Court signed on the same day. The Court concluded that Judgment Debtor owed Judgment Creditor a total of \$759,604.49, in addition to \$435.00 in costs.

On December 18, 2024, Judgment Creditor filed the Abstract of Judgment – Civil and Small Claims, which the Court signed on December 23, 2024.

On December 31, 2025, Judgment Creditor filed the Memorandum of Costs After Judgment, Acknowledgment of Credit, and Declaration of Accrued Interest. In this document, Judgment Creditor claimed \$108,071.37 in accrued interest. On the same day, Judgment Creditor also filed a Writ of Execution (Money Judgment). The Court signed this writ of execution on January 6, 2026.

LEGAL STANDARD

In California, a judgment creditor generally cannot garnish the wages of a debtor's spouse. (Code Civ. Proc., § 706.109.) "An earnings withholding order may not be issued against the earnings of the spouse of the judgment debtor except by court order upon noticed motion." (Code Civ. Proc., § 706.109.)

However, Family Code section 910, subdivision (a), provides that "[e]xcept as otherwise expressly provided by statute, the community estate is liable for a debt incurred by either spouse before or during marriage,

regardless of which spouse has the management and control of the property and regardless of whether one or both spouses are parties to the debt or to a judgment for the debt." (Fam. Code, § 910, subd. (a).) Nevertheless, "although a married couple's community property is liable for the premarital debts of either spouse, a portion of that community property -- the nondebtor-spouse's earnings and income -- is shielded from liability for that premarital debt to the extent that those earnings and income are held in an account to which the debtor-spouse does not have access and are not commingled (except for insignificant amounts)." (Sturm v. Moyer (2019) 32 Cal.App.5th 299, 307.)

DISCUSSION

Judgment Creditor claims that Judgment Debtor is married to Jennifer Jackson and that this marriage existed at the time the debt was incurred. (Motion, p. 7:7-9.) However, Judgment Creditor does not provide any supporting evidence in the declaration or as an accompanying exhibit to substantiate these claims.

Furthermore, while Judgment Creditor states that Jennifer Jackson is employed at Karl Storz Endoscopy-America, Inc., located at 2151 East Grand Avenue, El Segundo, CA 90245, there is no documentation presented to verify her employment status.

Additionally, Judgment Creditor fails to demonstrate that Judgment Debtor possesses any ownership interest in, or access to, any account where Jennifer Jackson's earnings may be deposited, nor is there evidence indicating a significant commingling of these earnings.

Accordingly, the Court DENIES this motion.

ORDERS

1)

Judgment

Creditor and Plaintiff Radiance Capital Receivables Eighteen, LLC's Motion for Order Allowing the Garnishment of Wages of Judgment Debtor's Spouse [CCP § 706.109] is DENIED.

2)

Judgment

Creditor is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 16, 2026

Tamara

Hall

Judge

of the Superior Court